

MSA

Master Subscription Agreement - Siemens Opcenter MES

Document CT-2024-006-MSA | Version 1.0 | Effective 01 Oct 2024 | Contract CT-2024-006

Parties

Customer: Fleet Command Motors India Pvt. Ltd. (fictional demo entity)

Vendor: Siemens Digital Industries Software (as counterparty named for demonstration only)

Key terms

Product	Siemens Opcenter MES
Deployment	On-prem
Term	01 Oct 2024 to 30 Sept 2027
Annual contract value	INR 3,05,76,000
Billing	Annual
Auto-renew	No
Notice period	90 days
Uplift cap	3.5% per year
Business owner	Plant Operations Head
Procurement owner	Engineering Procurement

Terms

1. Scope

Vendor grants Customer a non-exclusive, non-transferable right to use the Subscription Services described in each Order Form for internal business purposes.

2. Term and renewal

The initial term runs from 01 Oct 2024 to 30 Sept 2027. Renewal requires a new Order Form unless either party gives 90 days written notice before expiry.

3. Fees and uplift

Fees are invoiced as stated in the Order Form (contract currency EUR, payable in INR). Renewal price increases are capped at 3.5% per year.

4. Licence compliance

Customer may not exceed purchased quantities. Usage above entitlement is subject to a true-up at the then-current list price, invoiced annually.

5. Data protection

Each party complies with the Digital Personal Data Protection Act, 2023 and the Data Processing Agreement attached to this MSA.

6. Governing law

This Agreement is governed by the laws of India; courts at Chennai have exclusive jurisdiction.

Executed electronically by both parties on 01 Oct 2024.

Customer signatory: Head of IT Sourcing (demo) Vendor signatory: Authorised representative (demo)